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Acerba Animi (September 29, 1932)

ACERBA ANIMI

ENCYCLICAL OF POPE PIUS XI ON PERSECUTION OF THE CHURCH IN MEXICO TO OUR VENERABLE BROTHERS OF MEXICO, THE ARCHBISHOPS, BISHOPS, AND ORDINARIES IN PEACE AND COMMUNION WITH THE APOSTOLIC SEE.

Health, Venerable Brethren, and the Apostolic Blessing.

The concern and sorrow which We feel at the present sad plight of human society at large in no way lessen Our special solicitude for Our beloved sons of the Mexican nation and for you, Venerable Brethren, who are the more deserving of Our paternal regard because you have been so long harassed by grievous persecutions.

2. From the beginning of Our Pontificate, following the example of Our Venerable Predecessor, We endeavoured with all Our might to ward off the application of those constitutional statutes which the Holy See had several times been obliged to condemn as seriously derogatory to the most elementary and inalienable rights of the Church and of the faithful. With this intent We provided that Our Representative should take up his residence in your Republic.

3. But whereas other Governments in recent times have been eager to renew agreements with the Holy See, that of Mexico frustrated every attempt to arrive at an understanding. On the contrary, it most unexpectedly broke the promises made to Us shortly before in writing, banishing repeatedly Our Representatives and showing thereby its animosity against the Church. Thus a most rigorous application was given to Article 130 of the Constitution, against which, on account of its extreme hostility to the Church, as may be seen from Our Encyclical Iniquis afflictisque of November 18, 1926, the Holy See had to protest in the most solemn manner. Heavy penalties were then enacted against the transgressors of this deplorable article; and, as a fresh affront to the Hierarchy of the Church, it was provided that every State of the Confederation should determine the number of priests empowered to exercise the sacred ministry, in public or in private.

4. In view of these unjust and intolerant injunctions, which would have subjected the Church in Mexico to the despotism of the State and of the Government hostile to the Catholic religion, you determined, Venerable Brethren, to suspend public worship, and at the same time called on the faithful to make efficacious protest against the unjust procedure of the Government. For your apostolic firmness, you were nearly all exiled from the Republic, and from the land of your banishment you had to witness the struggles and martyrdom of your priests and of your flock; whilst those very few amongst you who almost by miracle were able to remain in hiding in their own dioceses succeeded in effectively encouraging the faithful with the splendid example of their own undaunted spirit. Of these events We took occasion to speak in solemn allocutions, in public discourses, and more at length in the above-mentioned Encyclical Iniquis afflictisque , and We were comforted by the world's admiration for the courage displayed by the clergy in administering the Sacraments to the faithful, amid a thousand dangers and at the risk of their lives, and for the like heroism of many of the faithful, who at the cost of unheard-of sufferings and enormous sacrifices, gave valiant assistance to their priests.

5. Meanwhile We did not forbear to encourage with word and counsel the lawful Christian resistance of the priests and the faithful, exhorting them to placate by penance and prayer God's Justice, that in His merciful Providence He might shorten the time of trial. At the same time We invited Our sons throughout the world to unite their prayers to Ours in behalf of their brethren in Mexico; and wonderful were the ardour and whole-heartedness with which they responded to Our appeal. Nor did We neglect to have recourse besides to the human means at Our disposal, in order to give assistance to Our beloved sons. Whilst addressing Our appeal to the Catholic world to give help, and generous alms, to their persecuted Mexican brethren, We urged the Governments with whom We have diplomatic relations to take to heart the abnormal and grievous condition of so many of the faithful.

6. In the face of the firm and generous resistance of the oppressed, the Government now began to give indications in

various ways that it would not be averse to coming to an agreement, if only to put an end to a condition of affairs which it could not turn to its own advantage. Whereupon, though taught by painful experiences to put scant trust in such promises, We felt obliged to ask Ourselves whether it was for the good of souls to prolong the suspension of public worship. That suspension had indeed been an effective protest against the arbitrary interference of the Government; nevertheless, its continuation might have seriously prejudiced civil and religious order. Of even greater weight was the consideration that this suspension, according to grave reports which We received from various and unexceptionable sources, was productive of serious harm to the faithful. As these were bereft of spiritual helps necessary for the Christian life, and not infrequently were obliged to omit their religious duties, they ran the risk of first remaining apart from and then of being entirely separated from the priesthood, and in consequence from the very sources of supernatural life. To this must be added the fact that the prolonged absence of almost all the Bishops from their dioceses could not fail to bring about a relaxation of ecclesiastical discipline, especially in times of such great tribulation for the Mexican Church, when clergy and people had particular need of the guidance of those "whom the Holy Ghost has placed to rule the Church of God."

7. When, therefore, in 1929 the Supreme Magistrate of Mexico publicly declared that the Government, by applying the laws in question, had no intention of destroying the "identity of the Church" or of ignoring the Ecclesiastical Hierarchy, We thought it best, having no other intention but the good of souls, to profit by the occasion, which seemed to offer a possibility of having the rights of the Hierarchy duly recognized. Seeing, therefore, some hope of remedying greater evils, and judging that the principal motives that had induced the Episcopate to suspend public worship no longer existed, We asked Ourselves whether it were not advisable to order its resumption. In this there was certainly no intention of accepting the Mexican regulations of worship, nor of withdrawing Our protests against these regulations, much less of ceasing to combat them. It was merely a question of abandoning, in view of the Government's new declarations, one of the methods of resistance, before it could bring harm to the faithful, and of having recourse instead to others deemed more opportune.

8. Unfortunately, as all know, Our wishes and desires were not followed by the peace and favourable settlement for which We had hoped. On the contrary, to Bishops, priests, and faithful Catholics continued to be penalized and imprisoned, contrary to the spirit in which the modus vivendi had been established. To Our great distress We saw that not merely were all the Bishops not recalled from exile, but that others were expelled without even the semblance of legality. In several dioceses neither churches nor seminaries, Bishops' residences, nor other sacred edifices, were restored; notwithstanding explicit promises, priests and laymen who had steadfastly defended the faith were abandoned to the cruel vengeance of their adversaries. Furthermore, as soon as the suspension of public worship had been revoked, increased violence was noticed in the campaign of the press against the clergy, the Church, and God Himself; and it is well known that the Holy See had to condemn one of these publications, which in its sacrilegious immorality and acknowledged purpose of anti-religious and slanderous propaganda had exceeded all bounds.

9. Add to this that not only is religious instruction forbidden in the primary schools, but not infrequently attempts are made to induce those whose duty it is to educate the future generations, to become purveyors of irreligious and immoral teachings, thus obliging the parents to make heavy sacrifices in order to safeguard the innocence of their children. We bless with all Our heart these Christian parents and all the good teachers who help them, and We urge upon you, Venerable Brethren, upon the clergy secular and regular, and upon all the faithful, the necessity of giving their utmost attention to the question of education and the formation of the young, especially among the poorer classes, since they are more exposed to atheist, masonic, and communistic propaganda, persuading yourselves that your country will be such as you build it up in the children.

10. An effort has been made to strike the Church in a still more vital spot; namely, in the existence of the clergy and the Catholic hierarchy, by trying to eliminate it gradually from the Republic. Thus the Mexican Constitution, as We have several times deplored, while proclaiming liberty of thought and conscience, prescribes with the most evident contradiction that each State of the Federal Republic must determine the number of priests to whom the exercise of the sacred ministry is allowed, not only in public churches, but even within private dwellings. This enormity is further aggravated by the way in which the law is applied. The Constitution lays down that the number of priests must be determined, but ordains that this determination must correspond to the religious needs of the faithful and of the locality. It does not prescribe that the Ecclesiastical Hierarchy is to be ignored in this matter, and this point was explicitly recognized in the declarations of the modus vivendi . Now in the State of Michoacan one priest was assigned for every

33,000 of the faithful, in the State of Chiapas one for every 60,000, while in the State of Vera Cruz only one priest was assigned to exercise the sacred ministry for every 100,000 of the inhabitants. Everyone can see whether it is possible with such restrictions to administer the Sacraments to so many people, scattered for the most part over a vast territory. Indeed, the persecutors, as though sorry for having been too liberal and indulgent, have imposed further limitations. Some Governors closed seminaries, confiscated canonries, and determined the sacred buildings and the territory to which the ministry of the approved priest would be restricted.

11. The clearest manifestation of the will to destroy the Catholic Church itself is, however, the explicit declaration, published in some States, that the civil Authority, in granting the licence for priestly ministry, recognizes no Hierarchy; on the contrary, it positively excludes from the possibility of exercising the sacred ministry all of hierarchic rank - namely, all Bishops and even those who have held the office of Apostolic Delegates.

12. We wished briefly to rehearse the salient points in the grievous condition of the Church in Mexico, so that all lovers of order and peace among nations, on seeing that such an unheard of persecution differs but little, especially in certain States, from the one raging within the unhappy borders of Russia, may from this iniquitous similarity of purpose conceive fresh ardour to stem the torrent which is subverting all social order. At the same time it is Our intention to give a new proof to you, Venerable Brethren, and to all Our beloved sons of Mexico, of the paternal solicitude with which We follow you in your tribulation: the same solicitude that inspired the instructions which We gave you last January through Our Beloved Son the Cardinal Secretary of State, and which was communicated to you by Our Apostolic Delegate. In matters strictly connected with religion, it is undoubtedly Our duty and Our right to establish the reasons and norms that all who glory in the name of Catholics are under the obligation of obeying. In this connection We are anxious to recall to mind that when We issued these instructions We gave due consideration to all the reports and advices that came to Us either from the Hierarchy or the faithful. We say all, even those that appeared to counsel a return to a severer line of conduct, with the total suspension of public worship throughout the Republic, as in 1926.

13. Concerning, therefore the conduct to follow, since the number of priests is not equally limited in every State, nor the rights of the Ecclesiastical Hierarchy everywhere equally disregarded, it is evident that, according to the different application of the unhappy decrees, different likewise must be the conduct of the Church and the Catholics. Here it seems just to pay a special tribute of praise to those Mexican Bishops who, according to advices received, have wisely interpreted the instructions We have inculcated time and again. To this We wish to call attention; for if some persons, urged rather by zeal for the defence of their own faith than by the prudence so necessary in delicate situations, may from diverse conduct in diverse circumstances have imagined contradictory judgments on the part of the Bishops, let them now be certain that such an accusation is utterly unfounded. Nevertheless, since any restriction whatever of the number of priests is a grave violation of divine rights, it will be necessary for the Bishops, the clergy, and the Catholic laity to continue to protest with all their energy against such violation, using every legitimate means. For even if these protests have no effect on those who govern the country, they will be effective in persuading the faithful, especially the uneducated, that by such action the State attacks the liberty of the Church, which liberty the Church can never renounce, no matter what may be the violence of the persecutors.

14. And therefore, just as We have read with satisfaction the protests recently made by the Bishops and priests of the diocese that are victims of the deplorable measures of the Government, so We join Our protests to yours before the whole world, and in a special manner before the Rulers of the Nations, to make them realize that the persecution of Mexico, besides being an outrage against God, against His Church, and against the conscience of a Catholic people, is also an incentive to the subversion of the social order, which is the aim of those organizations professing to deny God.

15. Meanwhile, in order to remedy to some extent the calamitous conditions that afflict the Church in Mexico, We must avail ourselves of those means which We still have in hand, so that, by the maintenance of divine worship as far as possible in every place, the light of faith and the sacred fire of charity may not be extinguished among those unhappy populations. Certainly, the laws are iniquitous that are impious, as We have already said, and condemned by God for everything that they iniquitously and impiously derogate from the rights of God and of the Church in the government of souls. Nevertheless, it would be a vain and unfounded fear to think that one is cooperating with these iniquitous legislative ordinances which oppress him, were he to ask the Government which imposes these things for permission to carry out public worship, and hence to hold that it is one's duty to refrain absolutely from making such a request. Such an erroneous opinion and conduct might lead to a total suspension of public worship, and would, without doubt, inflict

grievous harm on the entire flock of the faithful.

16. It is well to observe that to approve such an iniquitous law, or spontaneously to give to it true and proper cooperation, is undoubtedly illicit and sacrilegious. but absolutely different is the case of one who yields to such unjust regulations solely against his will and under protest, and who besides does everything he can to lessen the disastrous effects of the pernicious law. In fact, the priest finds himself compelled to ask for that permission without which it would be impossible for him to exercise his sacred ministry for the good of souls; it is an imposition to which he is forced to submit in order to avoid a greater evil. His behaviour, consequently, is not very different from that of one who having been robbed of his belongings is obliged to ask his unjust despoiler for at least the use of them.

17. In truth, the danger of formal cooperation, or of any approval whatever of the present law, is removed, as far as is necessary, by the protests energetically expressed by this Apostolic See, by the whole Episcopate and the people of Mexico. To these are added the precautions of the priest himself, who, although already appointed to the sacred ministry by his own Bishop, is obliged to ask the Government for the possibility of holding divine service; and, far from approving the law that unjustly imposes such a request, submits to it materially, as the saying is, and only in order to remove an obstacle to the exercise of the sacred ministry: an obstacle that would lead, as We have said, to a total cessation of worship, and hence to exceedingly great harm to innumerable souls. In much the same manner the faithful and the sacred ministers of the early Church, as history relates, sought permission, by means of gifts even, to visit and comfort the martyrs detained in prison and to administer the Sacraments to them; yet surely no one could have thought that by so doing they in some way approved or justified the conduct of the persecutors.

18. Such is the certain and safe doctrine of the Church. If, however, the putting of it into practice should cause scandal to some of the faithful, it will be your duty, Venerable Brethren, to enlighten them carefully and exactly. If, after you have performed this office of explanation and persuasion, according to these Our directions, anyone should cling stubbornly to his own false opinion, let him know that he can hardly escape the reproach of disobedience and obstinacy.

19. Let all, then, continue in that unity of purpose and obedience that We have praised in the clergy, on another occasion, at length and with lively satisfaction. And, putting aside all uncertainties and fears easily understood in the first moments of the persecution, let the priests with their proved spirit of abnegation render ever more intense their sacred ministry, particularly among the young and the common people, striving to carry on a work of persuasion and of charity especially among the enemies of the Church, who combat her because they do not know her.

20. And here We recommend anew a point that We have greatly at heart, namely, the necessity of instituting and furthering to an ever greater extent Catholic Action, according to the directions communicated at Our command by Our Apostolic Delegate. This is undoubtedly a difficult undertaking in its first stages, and especially in the present circumstances - an undertaking slow at times in producing the desired effects, but necessary and much more efficacious than any other means, as is abundantly proved by the experience of every nation that has been tried in the crucible of religious persecution.

21. To Our beloved Mexican sons We recommend with all Our heart the closest union with the Church and the Hierarchy, manifesting it by their docility to her teachings and directions. Let them not neglect to have recourse to the Sacraments, sources of grace and strength; let them instruct themselves in the truths of religion; let them implore mercy from God on their unhappy nation, and let them make it both a duty and an honour to cooperate with the apostolate of the priesthood in the ranks of Catholic Action.

22. We wish to pay a special tribute of praise to those members of the clergy, secular and regular, and of the Catholic laity, who, moved by burning zeal for religion and maintaining themselves in close obedience to this Apostolic See, have written glorious pages in the recent history of the Church in Mexico. At the same time We exhort them earnestly in the Lord to continue to defend the sacred rights of the Church with that generous abnegation of which they have given such a splendid example, always following the norms laid down by this Apostolic See.

23. We cannot conclude without turning in a very special manner to you, Venerable Brethren, who are the faithful interpreters of Our thoughts. We wish to tell you that We feel all the more closely united to you, in proportion to the hardships you are meeting with in your apostolic ministry. We are certain that, being so close to the heart of the Vicar of

Christ, you will draw comfort and strength from this knowledge to persevere in the holy and arduous enterprise of leading to salvation the flock entrusted to you. And that the grace of God may ever assist you and His Mercy support you, with all paternal affection, We impart to you and to Our beloved sons so sorely tried, the Apostolic Benediction.

Given at Rome, at Saint Peter's, on the feast of the Dedication of Saint Michael the Archangel, the twenty-ninth day of September in the year 1932, the eleventh of Our Pontificate. PIUS XI

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